

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

SENATE BILL NO. 2399
(Senators Lee, Larson, Roers)
(Representatives Mitskog, M. Ruby)
(Approved by the Delayed Bills Committee)

AN ACT to create and enact a new section to chapter 50-24.1 of the North Dakota Century Code, relating to medical assistance reimbursement of psychiatric residential treatment facilities; to provide for a legislative management report; and to provide an appropriation.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. A new section to chapter 50-24.1 of the North Dakota Century Code is created and enacted as follows:

Reimbursement of psychiatric residential treatment facilities.

The department shall amend the rules for medical assistance reimbursement of psychiatric residential treatment facilities for direct care costs, including the applicable costs related to clinical supervisors, medical directors, engagement of families in care, therapeutic leave days, and an administrative costs cap. Reimbursements for therapeutic leave days may not exceed five hundred dollars per day. The department shall implement utilization controls, including service authorization for therapeutic leave days.

SECTION 2. DEPARTMENT OF HEALTH AND HUMAN SERVICES - MEDICAL ASSISTANCE REIMBURSEMENT - LEGISLATIVE MANAGEMENT REPORT. The department shall submit a report to the legislative management by October 1, 2026, regarding changes to medical assistance reimbursement of psychiatric residential treatment facilities for direct care costs, including the applicable costs related to clinical supervisions, medical directors, engagement of families in care, therapeutic leave days, and an administrative cost cap and progress towards value-based care.

SECTION 3. APPROPRIATION - DEPARTMENT OF HEALTH AND HUMAN SERVICES-PSYCHIATRIC RESIDENTIAL FACILITIES. There is appropriated out of any moneys in the general fund in the state treasury, not otherwise appropriated, the sum of \$647,149, or so much of the sum as may be necessary, and from other funds derived from federal and special funds, the sum of \$660,025, or so much of the sum as may be necessary, to the department of health and human services for the purpose of psychiatric residential treatment facility reimbursement, for the biennium beginning July 1, 2025, and ending June 30, 2027.

President of the Senate

Speaker of the House

Secretary of the Senate

Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2399.

Senate Vote: Yeas 45 Nays 2 Absent 0

House Vote: Yeas 90 Nays 3 Absent 1

Secretary of the Senate

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State